

25TRCV00587 25TRCV00587

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Case Number: 25TRCV00587 Hearing Date: September 16, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Wednesday – September 16, 2026

Calendar No.

PROCEEDINGS

R.S.,

et al. v. Los Angeles Unified School District, et al.

25TRCV00587

1.

R.S.'s Motion to

Compel Further Responses to Special Interrogatories, Set One, and Request for Sanctions

2.

R.S.'s Motion to Compel

Further Responses to Request for Production of Documents, Set One, and Request for Sanctions

TENTATIVE RULING

R.S.'s Motions to Compel Further Responses to Special Interrogatories, Set One, and Request for Production of Documents, Set One, and Requests for Sanctions are granted, in part, and denied, in part.

Background

Plaintiffs filed the Complaint on February 24, 2025. Plaintiffs allege that Plaintiff R.S., a minor, was sexually assaulted by another student. Plaintiffs allege a sole cause of action for Negligent Supervision.

Motions to Compel Further Responses to Special Interrogatories and Requests for Production of Documents

Where

responses to interrogatories have been served but the requesting party believes that they are deficient because the answers are evasive or incomplete, or, because an objection is without merit, that party may move for an order compelling a further response. CCP § 2030.300(a). Notice of the motion must be given within 45 days after service of verified responses in question, or any verified supplemental responses. CCP § 2030.300(c). The motion must be accompanied by a meet and confer declaration in compliance with CCP § 2016.040. CCP § 2030.300(b).

A party responding to an inspection demand shall respond to each demand with one of the following: a statement the party will comply with the demand, a representation the party lacks the ability to comply with the demand, or an objection. (Code Civ. Proc., § 2031.210, subd. (a).) A response to an inspection demand may be inadequate because it is evasive or incomplete; contains an incomplete statement of compliance; an inadequate, incomplete, or evasive representation of inability to comply; or meritless or overly general objections to a demand. (Code Civ. Proc., § 2031.310, subd. (a).)

If a demanding party believes the responding party responded inadequately, the demanding party may move for an order compelling

further response. (Code Civ. Proc., § 2031.310, subd. (a).) "Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand." (Code Civ. Proc., § 2031.310, subd. (c).)

Meet and Confer

Plaintiffs set forth meet and confer declarations in substantial compliance with CCP §§ 2030.300(b)(1) and 2031.310(b)(2). (Declarations, Lusine Ghazaryan).

Motions to Compel

Plaintiff seeks further responses to Special Interrogatories Nos. 11, 13, 15, and 21.

Special Interrogatory 11 states: "State whether any of YOUR students were punished, reprimanded, disciplined, suspended, or expelled as a result of their actions during the INCIDENT."

Special Interrogatory 13 states: "IDENTIFY each of YOUR students who were punished, reprimanded, disciplined, suspended, or expelled as a result of their actions during the INCIDENT."

Special Interrogatory 15 states: "IDENTIFY each of YOUR students that were involved in the INCIDENT."

Special Interrogatory 21 states: "Describe, in detail, any conversation YOUR employees, agents, and/or security guards had with the student that sexually assaulted/battered Plaintiff on the date of the INCIDENT."

Plaintiff also seeks further responses to Request for Production of Documents ("RFP" or "Request[s]") Nos. 30 through 32.

Request 30 seeks: "The personnel file of YOUR student who sexually assaulted/battered Plaintiff on the date of the INCIDENT."

Request 31 seeks: "Any and all DOCUMENTS regarding disciplinary action(s) taken by YOU against YOUR student who sexually assaulted/battered Plaintiff on the date of the INCIDENT."

Request 32 seeks: "Any and all DOCUMENTS regarding performance issues of YOUR student who sexually assaulted/battered Plaintiff on the date of the INCIDENT."

Thus, as demonstrated above, the discovery requests seek the identity of the student or students who allegedly sexually assaulted/battered Plaintiff, information about that student(s), and information about Defendant's interactions with that student.

"The state Constitution expressly grants Californians a right of privacy. (Cal. Const., art. I, §1.) Protection of informational privacy is the provision's central concern."

Williams v. Superior Court

(2017) 3 Cal.5th 531, 552. "[W]hen a discovery request seeks information implicating the constitutional right of privacy, to order discovery simply upon a showing that the Code of Civil Procedure section 2017.010 test for relevance has been met is an abuse of discretion."

Williams v. Superior Court,

supra, 3 Cal.5th at 556 (citations omitted).

In Hill v.

National Collegiate Athletic Assn. (1994) 7 Cal.4th 1, 35-37, the

California Supreme Court "established a framework for evaluating potential invasions of privacy. The party

asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. . . . The party seeking

information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations." Williams

v. Superior Court, supra, 3 Cal.5th at 552 (citations omitted). In Hill, the Court "explained that not 'every assertion of a privacy interest under article I, section 1 must be overcome by a "compelling interest." . . . A "compelling interest" is still required to justify 'an obvious invasion of an interest fundamental to personal

autonomy.” Id. at 556.

Disclosure depends upon balancing the need for discovery against the need for confidentiality.

“Courts must instead place the burden on the party asserting a privacy interest to establish its extent and the seriousness of the prospective invasion, and against that showing must weigh the countervailing interests the opposing party identifies, as Hill requires.” *Williams v. Superior Court* (2017) 3 Cal.5th 531, 557.

Certainly, the discovery requests at issue are designed to lead to the discovery of admissible evidence in this action. Defendant has objected on the grounds of privacy and specifically pointed to the Cal. Education Code section 49076 and the Family Educational Rights and Privacy Act (“FERPA”) (20 U.S.C. § 1232g; 34 CFR § 99). Defendant argues that it cannot permit access to the requested records of the students without written parental consent or judicial order.

“The apparent purpose of FERPA is to ensure access to educational records for students and parents and to protect the privacy of such records from the public at large. FERPA conditions federal educational funding on maintaining the privacy of “education records other than directory information...” (20 U.S.C. § 1232g, subd. (b)(2).) Education records consist of “those records, files, documents, and other materials which (i) contain information directly related to a student; and (ii) are maintained by an educational agency or institution or by a person acting for such agency or institution.” *Poway Unified School Dist. v. Superior Court (Copley Press)* (1998) 62 Cal.App.4th 1496, 1506 (internal citation omitted).

As noted above, Defendant acknowledges that information can be produced via a court order. Upon weighing the privacy interests involved against the countervailing interest identified by Plaintiff, the Court determines that disclosure of the information is warranted, but, with the proper safeguards. The information sought goes to the heart of this action, and, arguably, Plaintiff would be unable to proceed or prove the elements of the cause of action without the information that is sought.

Pursuant to 20 U.S.C. § 1232g(b)(2)(B), disclosure pursuant to a judicial order is permitted only “upon condition that parents and

the students are notified of all such orders or subpoenas in advance of the compliance therewith by the educational institution or agency.” 20 USC § 1232(g). In addition, 34 C.F.R. § 99.31(a)(9)(ii) requires that the educational agency or institution “makes a reasonable effort to notify the parent or eligible student of the order or subpoena in advance of compliance, so that the parent or eligible student may seek protective action.” 34 CFR § 99.31(a)(9)(ii). The Court also orders the parties to enter into a protective order and confidentiality agreement in order to protect the sensitive information that are at issue with these discovery requests.

Thus, the motion is granted, in part. Defendant is ordered to comply with the procedural safeguards noted above. Upon compliance with these procedural safeguards, Defendant is ordered to serve further responses to the special interrogatories and requests for production of documents at issue in these motions within 45 days of that date.

Sanctions

Plaintiffs’ requests for monetary sanctions are denied. Defendant has established substantial justification for its actions and circumstances exist that would make the imposition of the sanction unjust. In fact, Defendant was mandated to respond in the manner that it did as a Court order is required for the information that is sought by Plaintiffs.

Plaintiffs are ordered to give notice of this ruling.